

- (4) Every railway administration shall keep at every station on its railway a copy of all the rules made under this section and shall also allow any person to inspect it free of charge,

Comments

Section 60, sub-clauses (1) and (2) empower the Central Government to make rules regarding carriage of passengers and their luggage under Chapter VIII. The matters in respect of which rules may be made are enumerated in sub-clause(2).

Sub-clauses (3) and (4) empower the Central Government to provide for punishment for contravention of rules, made under this clause and impose an obligation on railway administration to allow the inspection of such rules free of charge.

CHAPTER IX

Carriage of goods

61. Maintenance of rate-books, etc., for carriage of goods.- Every railway administration shall maintain, at each station and at such other places where goods are received for carriage, the rate-books or other documents which shall contain the rate authorized for the carriage of goods from one station to another and make them available for the reference of any person during all reasonable hours without payment of any fee.

Comment

Section 61 imposes an obligation on every railway administration to maintain the rate-books or other documents relating to rates and make them available for reference to any person without payment of any fee.

62. Conditions for receiving, etc., of goods. – (1) A railway administration may impose conditions, not inconsistent with this Act or any rules made there under, with respect to the receiving, forwarding, carrying or delivering of any goods;

(2) A railway administration shall maintain, at each station and at such other places where goods are received for carriage, a copy of the conditions for the time being in force under sub-section (1) and make them available for the reference of any person during all reasonable hours without payment of any fee.

Comment

Section 62 empowers railway administration to impose conditions with respect to receiving, forwarding, carrying or delivering of goods and

maintenance of copy thereof at each station where goods are received for carriage and make it available for reference of any person without payment of any fee.

63. Provision of risk rates.- (1) Where any goods are entrusted to a railway administration for carriage, such carriage shall except where owner's risk rate is applicable in respect of such goods, be at railway risk rate.

(2) Any goods for which owner's risk rate and railway risk rate are in force, may be entrusted for carriage at either of the rates and if no rate is opted, the goods shall be deemed to have been entrusted at owner's risk rate.

Comment

Section 63 provides for risk rates at which goods may be entrusted to railway for carriage.

64. Forwarding note.- (1) Every person entrusting any goods to a railway administration for carriage shall execute a forwarding note in such form as may be specified by the Central Government:

Provided that no forwarding note shall be executed in the case of such goods as may be prescribed.

(2) The consignor shall be responsible for the correctness of the particulars furnished by him in the forwarding note.

(3) The consignor shall identify the railway administration against any damage suffered by if reason of the incorrectness of incompleteness of the particulars in the forwarding note.

Comments

Section 64 provides for execution of a forwarding note by a person entrusting goods for carriage by railway.

65. Railway receipt. – (1) A railway administration shall, -

- (a) in a case where the goods are to be loaded by a person entrusting such goods, on the completion of such loading ; or
- (b) in any other case, on the acceptance of the goods by it, issue a railway receipt in such form as may be specified by the Central Government.